

		Sections 597 and 597.5. The court, on its own motion, may make such an order at any time.” (Emphasis added.) Code of Civil Procedure section 1048(b) reads: “The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, <i>may</i> order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (Emphasis added.) Though they utilize different methods, both sections allow the court to separate issues at trial to promote judicial economy and “avoid wasting court time.” (<i>Foreman & Clark Corp. v. Fallon</i> (1971) 3 Cal.3d 875, 888, fn. 8.) The determination of whether to bifurcate or sever claims is entrusted to the court’s broad discretion. (<i>Grappo v. Coventry Financial Corp.</i> (1991) 235 Cal.App.3d 496, 504; <i>Pilliod v. Monsanto Co.</i> (2021) 67 Cal.App.5th 591, 625–626.) Based on the record before the court, the requested bifurcation would not promote judicial economy. Accordingly, the motion is denied. Respondent Rafat Subhan is directed to give notice.
4	Rhodes – Trust; 30-2025-01527303-PR-TR-CMC	<i>Rhodes – Trust (2025-01527303)</i> Motion to Suspend; Motion to Appoint Eugene S. Rhodes’ Motion to Appoint Interim Professional Private Fiduciary to Replace Existing Co-Trustees (ROA 12) is GRANTED in part as set forth below. Paul M. Rhodes’ Motion for Suspension of Co-trustee Eugene S. Rhodes and Other Relief,

	Including Appointment of Independent Trust Company (ROA 54) is GRANTED in part as set forth below. As explained below, the hearing on these motions is continued to 9:00 a.m. on August 26, 2026 in CM08. Eugene S. Rhodes (Eugene)¹ and Paul M. Rhodes (Paul) are co-trustees of the Marjorie S. Rhodes Trust dated September 1, 1964 (Trust). The Trust provides no guidance on whether the co-trustees must operate by unanimous consent or individually. Accordingly, the co-trustees can only act by unanimous consent. (Prob. Code, § 15620 [“Unless otherwise provided in the trust instrument, a power vested in two or more trustees may only be exercised by their unanimous action”].) This proceeding was initiated in November 2025 by Eugene’s petition for instructions and other relief under Probate Code section 1722 (ROA 2). In May of 2026, Paul also filed a petition, seeking to suspend Eugene as co-trustee (ROA 54). The details of the creation and history of the Trust are not necessary to this order. Neither are the various allegations and accusations made by the co-trustees against each other. Suffice it to say that, at this point, there is both hostility and lack of cooperation between Paul and Eugene as co-trustees of the Trust. (Declaration of Eugene Rhodes (ROA 13) at ¶ 15 (5:6-7); Declaration of Paul M. Rhodes (ROA 32) at ¶ 19 (4:17-22).) By the motions before the court this day, Eugene seeks an order removing himself and Paul as co-trustees of the Trust and appointing a private licensed professional fiduciary in their place while Paul seeks an order suspending only Eugene as co-trustee of the Trust and appointing Peninsula Bay Trust Company in his place. The court has authority to suspend a trustee and to appoint an interim trustee pending resolution of a petition brought under Probate Code section 17200. (Prob. Code, §§ 15642(e), 17206.) That authority is discretionary. (<i>Schwartz v. Labow</i> (2008) 164 Cal.App.4th 417, 429-430.) A trial
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¹ Because the parties share a last name, the court refers to them by their first names. No disrespect is intended.

	court has broad discretion in determining whether to remove a trustee based on one of these statutory grounds. (<i>Estate of Gilmaker</i> (1962) 57 Cal.2d 627, 633 [“The removal and substitution of a trustee is largely within the discretion of the trial court”].) A trustee may be removed “[w]here hostility or lack of cooperation among cotrustees impairs the administration of the trust.” (Prob. Code, § 15642(b)(3).) The only things the moving parties agree on are: (1) there is both a lack of cooperation and hostility between them; and (2) administration of the Trust has been impaired. Accordingly, the court suspends both Paul and Eugene as co-trustees of the Trust. The suspension will be effective at 5:00 p.m. on August 26, 2026. The delay is to allow the court to appoint an interim trustee pursuant to the following procedure. Eugene and Paul are each ordered to file and serve three suggested private professional fiduciaries (those names may but are not required to include the private professional fiduciaries already suggested in the current motions) at 11:00 a.m. on Monday, August 17, 2026. Each party may, but is not required to, strike one name from the other party’s list. If a party elects to strike a name, they must file and serve a notice identifying the stricken name at 11:00 a.m. on Wednesday, August 19, 2026. The hearing on these motions is continued to August 26, 2026 at 9:00 a.m. in CM08. At that hearing, the court will notify the parties of its selection for interim trustee. Subject to two exceptions addressed in the following sentences, the court makes no ruling on the various objections filed in connection with these motions (ROAs 75, 101, 116, 120, & 127) because the evidence objected to is not material to the court’s disposition of the motions. The two exceptions are Paul’s objection to ¶ 15 of Eugene’s initial declaration and Eugene’s objection to ¶ 19 of Paul’s initial declaration (the paragraphs establishing hostility and lack of cooperation). The court overrules the objections to those paragraphs and considers the paragraphs only for the purpose of demonstrating the state of mind of the declarants. Eugene’s Request for Judicial Notice (ROA 70) is DENIED as the offered documents are not material to the court’s disposition of the motions.
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		The court will give notice.
5	Rhodes Jr – Trust; 30-2025-01527303-PR-TR-CMC	<i>Rhodes Jr. – Trust (2025-01527301)</i> Motion to Suspend; Motion to Appoint Eugene S. Rhodes’ Motion to Appoint Interim Professional Private Fiduciary to Replace Existing Co-Trustees (ROA 12) is GRANTED in part as set forth below. Paul M. Rhodes’ Motion for Suspension of Co-trustee Eugene S. Rhodes and Other Relief, Including Appointment of Independent Trust Company (ROA 54) is GRANTED in part as set forth below. As explained below, the hearing on these motions is continued to 9:00 a.m. on August 26, 2026 in CM08. Eugene S. Rhodes (Eugene)² and Paul M. Rhodes (Paul) are co-trustees of the Frank A Rhodes, Jr. Separate Property Trust dated July 14, 1998 (Trust). Pursuant to the terms of the Trust, the co-trustees may only operate by unanimous consent (ROA 2, Exhibit C at § 10.10.2). This proceeding was initiated in November 2025 by Eugene’s petition for instructions and other relief under Probate Code section 1722 (ROA 2). In March of 2026, Paul also filed a petition, seeking to remove Eugene as co-trustee (ROA 17). The details of the creation and history of the Trust are not necessary to this order. Neither are the various allegations and accusations made by the co-trustees against each other. Suffice it to say that, at this point, there is both hostility and a lack of cooperation between Paul and Eugene as co-trustees of the Trust. (Declaration of Eugene Rhodes (ROA 13) at ¶ 16 (6:1-6); Declaration of Paul M. Rhodes (ROA 32) at ¶ 19 (4:17-22).)

² Because the parties share a last name, the court refers to them by their first names. No disrespect is intended.